

SETTLEMENT AGREEMENT

This Settlement Agreement ("Agreement") is entered into this 14th day of October 2022, by and between Shari Hodgson ("Ms. Hodgson"), the Brecksville-Broadview Heights Education Association ("BEA" or "Association") and the Board of Education of the Brecksville-Broadview Heights City School District ("Board" or "District") (collectively, the "Parties").

WHEREAS, Ms. Hodgson is currently employed by the Board of Education in the position of speech language pathologist ("SLP"), assigned to the Elementary School; and

WHEREAS, as a SLP working for and on behalf of the Board, Ms. Hodgson is required to maintain a valid and active license in accordance with the rules and regulations established by the Ohio Speech and Hearing Professionals Board, as well as in accordance with the criteria set forth by the Ohio Department of Education and state law; and

WHEREAS, the following provisions are included in the collective bargaining agreement between the BEA and the Board of Education, effective July 1, 2021 through June 30, 2024 ("Contract" or "BEA Contract"):

Section 2 – RECOGNITION

B. Bargaining Unit Members

1. Teacher(s) shall mean all certificated/licensed personnel...

Section 15 – WORKING CONDITIONS

D. Assignment

9. **Teachers are expected to maintain on file with the Superintendent's office paperwork reflecting current licensure. In the event a teacher does not timely complete his/her coursework requirements or timely file the paperwork to renew the teacher's licensure prior to the start of the school year, the teacher will be expected to apply for and receive a substitute license and will teach under the substitute license until the teacher's regular teaching license is renewed. The teacher will be paid at the hourly substitute teaching rate of pay and will not be eligible for benefits for the period in which they are teaching under the substitute license. The teacher will not be entitled to any retroactive reinstatement of the teacher's regular salary upon receipt of the renewed license. In the event the teacher does not obtain the renewed license prior to the start of the second grading period, the teacher will be terminated for cause pursuant to ORC 3319.16. This deadline of the start of the second grading period shall be mutually extended if it is violated for reasons beyond the teacher's control"** (emphasis added); and

WHEREAS, Ms. Hodgson, as well as other SLPs employed by the Board, is a certificated and/or licensed personnel, and thus is considered to be a “teacher” for purposes of being a recognized member of the BEA bargaining unit and, therefore, is governed by the BEA Contract; and

WHEREAS, Ms. Hodgson failed to timely renew her license to practice as a speech-language pathologist at the start of the 2021-2022 school year; and

WHEREAS, Ms. Hodgson was unable to apply for and receive a substitute license in accordance with Section 15(D)(9) of the BEA Contract – in order to serve in any capacity as a speech-language pathologist, including as a SLP substitute, Ms. Hodgson must have a valid Ohio board license to practice as a speech-language pathologist; and

WHEREAS, because Ms. Hodgson was unable to receive a substitute license during such time that her Ohio board license to practice as a speech-language pathologist was inactive or otherwise expired (unlike a teacher who is able to obtain a substitute teaching license), the BEA asserts that Section 15(D)(9) is not applicable to SLPs in the District and, therefore, Ms. Hodgson cannot be compensated at the reduced hourly substitute teaching rate of pay during the period in which her license was expired; and

WHEREAS, the Board disagrees with the BEA’s contention that Section 15(D)(9) does not apply to Ms. Hodgson or other SLPs employed with the District and asserts that Ms. Hodgson must be paid a substitute rate during the time in which her SLP license was inactive or otherwise expired; and

WHEREAS, Ms. Hodgson renewed her speech-language pathologist license on or about the fall of 2021 through the Ohio Speech and Hearing Professionals Board, with a retroactive effective date of January 1, 2021, covering the temporary period of time at the start of the 2021-2022 school year that Ms. Hodgson’s license was expired; and

WHEREAS, rather than incur further time and expense in pursuing and/or defending matters related to or arising out of Ms. Hodgson’s licensure and employment by the Board, and to avoid the uncertainty of the outcome of further dispute, the Parties wish to compromise, resolve, and settle their claims and differences pursuant to and in consideration of the terms set forth below; and

NOW, THEREFORE, in consideration of the mutual promises and covenants contained herein, the Parties agree as follows:

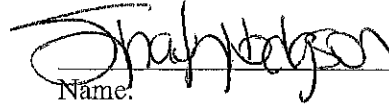
1. Because the Ohio Speech and Hearing Professionals Board issued Ms. Hodgson a renewed/active and valid license retroactive to January 1, 2021, and in consideration of the BEA’s contention regarding the applicability of Section 15(D)(9) of the BEA Contract, the Parties agree that Ms. Hodgson shall receive her regular rate of pay and benefits for the duration of the 2021-2022 school year.
2. Moving forward, Ms. Hodgson agrees to maintain on file with the Superintendent’s office paperwork reflecting her current licensure, including any and all licensure required to practice as a speech-language pathologist pursuant to the Ohio Speech and Hearing Professionals Board, the Ohio Department of Education and state law. She further agrees to complete all coursework requirements and timely file the paperwork necessary to renew her SLP license and acknowledges and agrees that her failure to do so may result in subsequent discipline in accordance with the BEA contract and state law.

3. Nothing contained herein shall constitute an admission of fault of any kind by any of the parties. This Agreement has been made solely for the purpose of resolving any and all possible disputes regarding Ms. Hodgson's failure to timely renew her SLP license.
4. This Agreement will be kept in a file separate from her personnel file.
5. The Parties to this Agreement further acknowledge and agree (a) each has had a full and complete opportunity to review and examine the terms of this Agreement and to consult with persons of their choice, including legal counsel, prior to execution of this Agreement; (b) each has knowingly and voluntarily executed this Agreement and fully understands the rights, duties and responsibilities imposed by the Agreement and intends to be bound by the terms of the Agreement; and (c) there are no other terms, conditions or agreements relating to the subject matters herein set forth aside from the provisions contained in this Agreement. Ms. Hodgson acknowledges and agrees that she is responsible for any costs and fees resulting from her attorney reviewing this Agreement.
6. Ms. Hodgson acknowledges and agrees that the Board has permitted her at least twenty-one (21) days to consider the execution of this Agreement to ensure that Ms. Hodgson's execution of this Agreement is knowing and voluntary. In signing below, Ms. Hodgson expressly acknowledges that she has had at least twenty-one (21) days to consider this Agreement and her execution of the same is with full knowledge of the consequences thereof and is of her own free will. Notwithstanding the fact that the Board has allowed Ms. Hodgson twenty-one (21) days to consider this Agreement, should Ms. Hodgson execute the Agreement before the full twenty-one (21) day period has run, Ms. Hodgson certifies by her signature below that she has knowingly and voluntarily waived the right to the full twenty-one (21) days with no pressure by or coercion from the Board to do so and was not induced by fraud, misrepresentation, or any threat to withdraw or alter the benefits provided by the Board herein. The Parties further agree that any modification to this Agreement, whether material or immaterial, does not restart the running of the twenty-one (21) day consideration period. Additionally, Ms. Hodgson has been advised for a period of seven (7) calendar days following the signing of this Agreement that she may revoke this Agreement. Ms. Hodgson shall provide written notice of any such revocation to Megan Bair, Esq. at Gingo & Bair Law, LLC, Summit One, 4700 Rockside Road, Suite 440, Independence, Ohio, 44131, or mbair@gingobair.com. This Agreement shall become fully "effective" on the eighth calendar day after she signs and dates below, and the Board adopts this Agreement, provided Ms. Hodgson has not revoked it during the revocation period.
7. The Parties agree that the invalidity or unenforceability of any provision or part of this Agreement shall not render any provision(s) or part(s) hereof invalid or unenforceable and that such other provision(s) or part(s) shall remain in full force and effect.
8. This Agreement shall be governed by the laws of the State of Ohio. The Parties understand and agree that any dispute arising from, growing out of, or in any way relating to this Agreement shall be filed in the state or federal courts of Ohio. In addition, the Parties reserve the right to bring legal action to enforce the terms of this Agreement.
9. The Parties agree that this Agreement shall not set any precedent in any future situation that may arise between the Board and the BEA, nor shall it be referred to or cited in any fashion in any other

dispute or disagreement between the Board and the BEA, except to the extent the dispute or disagreement relates solely to the enforcement of the terms of this Agreement.

10. This Agreement together with any amendments hereto shall be binding upon and shall inure to the benefit of the Parties hereto and respective successors, assigns, heirs, and personal representatives, except that the rights and benefits of Ms. Hodgson under this Agreement are personal in nature and may not be assigned without the prior written consent of the Board.
11. The Parties commit and agree that this Agreement represents the entire understanding and agreement between the Parties, and there are no understandings or agreements between the Parties other than those specifically and particularly set forth in this Agreement. The terms of this Agreement are intended to be enforced as here written to the maximum extent permitted by law, and, if any provision herein is deemed invalid or unenforceable, the remaining provisions shall continue in full force and effect and constitute the Agreement.
12. This Agreement shall not be amended or modified in any manner except upon the written agreement signed by the Parties hereto.

SHARI HODGSON


Name: _____

Date: 10/14/2022

BRECKSVILLE-BROADVIEW HEIGHTS
EDUCATION ASSOCIATION

Name:

Date: _____

BRECKSVILLE-BROADVIEW HEIGHTS
CITY SCHOOL DISTRICT BOARD OF
EDUCATION

By: _____

Name: Joelle Magyar
Title: Superintendent

Date: _____

By: _____

Name: Craig Yaniglos

Title: Treasurer/CFO

Date: _____